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Formal Opposition to Eviction: Legal and Ethical Reasons for NCAT Intervention Preventing Eviction Aligned and McLean

NCAT Consumer and Commercial Division case: 2024/00338219 between parties ALIGNED COMMUNITY CARE PTY LTD trading as ALIGNED COMMUNITY CARE PTY LTD v Richard McLean,

To the NSW Civil and Administrative Tribunal (NCAT):

I, Dr Richard McLean, formally oppose my eviction based on legal and ethical grounds that highlight significant breaches of both domestic and international law. Below, I detail these points with reference to specific legislation and rights to show why NCAT intervention is necessary to prevent this eviction.

In addition to the legal violations I have outlined, I want to emphasize that I would easily leave if I had somewhere to go for my dog and me, some way to get there, and the financial means to live—secured by the rights and provisions most people have, but which I am being denied. I live in exile, deprived of my basic human and legal rights. As a rejected whistleblower suffering political reprisals, I am seeking refuge within the very democracy I am a citizen of.

I am an infamous asylum seeker in my own country, the subject of a brutal conspiracy in which the government has turned me into an innocent fugitive and political target. This is a direct result of my moral and ethical obligations to call out corruption for the sake of democracy and humanity everywhere. Despite being unjustly vilified, falsely accused, and treated as an outcast, I have no money, no compensation, and no workers' rights, all of which have been stripped from me over the last thirty years.

I was publicly humiliated by the mass media, terminated from multiple jobs without any recourse, and subjected to ongoing victimization, including gang stalking and electronic harassment, as a targeted individual. My prosperity has been redacted, leaving me destitute, and unable to find shelter or work. This

treatment is a direct result of my attempts to expose corruption, which has turned me into a political target with no protection or support.

Below, I provide further legal and ethical reasons for NCAT to intervene and prevent this eviction.

1. **Disability Discrimination (Disability Discrimination Act 1992)**
The Disability Discrimination Act 1992 (Cth), specifically Sections 15 and 24, prohibits discrimination against individuals with disabilities, including in matters related to accommodation and the provision of services. In my case, the eviction, without implementing reasonable adjustments for my disability, contravenes this law. Australia's obligations under the UN Convention on the Rights of Persons with Disabilities (CRPD), particularly Article 28, emphasize the necessity to protect individuals with disabilities from housing discrimination.
Violation: The failure to accommodate my disability and the resulting homelessness breach the CRPD, Article 28 (Right to Adequate Housing).
2. **Breach of Tenancy Rights (Residential Tenancies Act 2010, NSW)**
Under the Residential Tenancies Act 2010 (NSW), landlords are required to ensure the premises are habitable (Section 60) and to follow the legal process for eviction (Section 85). The failure of both my NDIS service providers and landlord to maintain livable conditions, along with their improper eviction processes, breaches these legal obligations.
Breach: The premises were not kept habitable (Section 60), and the eviction process failed to adhere to legal standards (Section 85).
3. **Failure to Support Disability Independence (NDIS Act 2013)**
The National Disability Insurance Scheme Act 2013 (Cth) promotes the independence and community participation of people with disabilities by providing reasonable and necessary supports. Despite professional recommendations for Supported Independent Living (SIL), I was denied access to this accommodation. This violates Sections 3 and 4 of the NDIS Act, which guarantee the right to independence and community participation for people with disabilities.
Violation: Denying SIL accommodation breaches the NDIS Act 2013, Sections 3 and 4, as well as Articles 19 and 28 of the CRPD.
4. **Persecution by the NDIS Minister**
The combined actions of the NDIS Minister, police, and courts amount to political persecution, resulting in my displacement and contributing to inadequate living conditions. This violates Article 28 of the CRPD, which protects the right to an adequate standard of living for persons with disabilities.
Violation: These actions breach Articles 19 (Living Independently) and 28

(Adequate Standard of Living) of the CRPD, as well as the Australian Human Rights Commission Act 1986.

5. **Retaliation for Whistleblowing (Public Interest Disclosure Act 2013)**
As a whistleblower exposing corruption within the NDIS, I am protected under Sections 10 and 19 of the Public Interest Disclosure Act 2013 (Cth) from retaliatory actions. My eviction is an act of reprisal for these disclosures, violating the protections provided under this Act.
Violation: The eviction constitutes an unlawful reprisal under Section 19 of the Public Interest Disclosure Act.
6. **Impact on Mental Health and Well-being (Mental Health Act 2007, NSW)**
The Mental Health Act 2007 (NSW) prioritizes the care and treatment of individuals in ways that respect their dignity and safety. Sections 68 and 78 highlight the obligation to protect people with mental health conditions. Evicting me, despite the known psychological harm it would cause, constitutes a failure to uphold this duty of care.
Breach: The eviction violates Sections 68 and 78 of the Mental Health Act 2007 (NSW) and contravenes Article 17 of the CRPD (Protecting the Integrity of the Person).
7. **Systemic Neglect and Coordinated Malice**
As a signatory to the International Covenant on Economic, Social and Cultural Rights (ICESCR), Australia is bound by Article 11, which guarantees the right to adequate housing. The pattern of systemic neglect that forced me into homelessness constitutes a breach of this obligation.
Violation: The NDIS providers' actions breach Article 11 of the ICESCR and the CRPD.
8. **Owed WorkCover as a Federal Court-Certified Employee of DSS**
The Federal Court recognized my employment with the Department of Social Services (DSS), qualifying me for workers' compensation. The refusal to provide WorkCover violates the Safety, Rehabilitation and Compensation Act 1988 (Cth), which governs compensation for workplace injuries.
Breach: Denying compensation breaches the Safety, Rehabilitation and Compensation Act 1988, contributing to my financial distress.
9. **Past Suicide Attempt Due to Coercive Financial Control**
In February 2021, financial coercion and systemic abuse led me to attempt suicide. This coercion violates my right to life and dignity under Articles 10 and 15 of the ICESCR. Evicting me in my vulnerable state endangers my life.
Violation: The actions of service providers and my landlord breach Article

10 (Protection of the Family) and Article 15 (Right to the Highest Standard of Health) of the ICESCR.

10. **Federal Court Acknowledgment of Imminent Risk to My Welfare**
The Federal Court acknowledged in February 2023 that I was at imminent risk, yet no protective measures were taken. This inaction violates the Australian Human Rights Commission Act 1986, which safeguards the rights of vulnerable persons.
Violation: The failure to act on the recognized risk breaches the Australian Human Rights Commission Act 1986, in connection with the CRPD.
11. **Acknowledgment of Human Rights Violations by NDIS Worker**
An NDIS worker, Tahsinullah Sultani, documented human rights violations against me. Both the NDIS and the Australian Human Rights Commission (AHRC) failed to investigate, in violation of their obligations under the Australian Human Rights Commission Act 1986 and the NDIS Code of Conduct.
Breach: The failure to act on documented violations breaches the NDIS Code of Conduct and the Australian Human Rights Commission Act 1986.
12. **NCAT's Duty to Acknowledge My Affidavit of Persecution**
I have submitted an affidavit detailing my systemic persecution. NCAT has a legal obligation to formally acknowledge this affidavit under both Australian law and international human rights conventions.
Obligation: NCAT must comply with the Disability Discrimination Act 1992 and the Australian Human Rights Commission Act 1986.
13. **UNHCR Appeal for Asylum**
My appeal to the United Nations High Commissioner for Refugees (UNHCR) for asylum, based on political persecution, has been ignored. This inaction violates the Refugee Convention 1951, to which Australia is a signatory.
Breach: Australia's failure to respond breaches the Refugee Convention 1951 and its obligations under international asylum laws.
14. **Acknowledgment of Marriage-Like Relationship with Stefan Iasonidis**
My relationship with Stefan Iasonidis, recognized under same-sex relationship laws, has not been acknowledged in legal proceedings or settlement negotiations. NCAT must recognize this partnership under the Relationships Act 2008 (Vic).
Breach: The failure to recognize this relationship violates the Relationships Act 2008 (Vic).

15. **No Possible Way to Pay Back Aligned for Rent Without Compensation**
Aligned Community Care, serving as both my landlord and carer, has failed to uphold its obligations under the NDIS Act 2013. Without proper compensation for the harms caused, I cannot repay outstanding rent.
Breach: The eviction process violates my rights under the NDIS Act 2013, given the dual role of Aligned as both my care provider and landlord.
16. **Public Humiliation by National Media**
The public humiliation and wrongful termination from The Age have caused lasting damage to my personal and professional life. This systemic mistreatment breaches my rights under defamation and workplace relations laws.
17. **Ramifications of "Betrayed, Murdered, Forsaken" Being Published**
My autobiography, Betrayed, Murdered, Forsaken, chronicles the systemic abuses I've faced. Failure to acknowledge the public record this book creates would perpetuate the injustices documented and further undermine my case.
18. **Systemic Failures Leading to My Current Situation**
My current homelessness and precarious situation result from a series of systemic failures by institutions that were supposed to protect my rights. These failures have not only left me destitute but also caused undue financial strain on those close to me, including my father, who is currently dying of cancer. I owe him and others money, and it is my deep desire to achieve justice and secure compensation before my father passes away. This would allow him to enjoy the repayment of what I owe, easing the burden of having supported a scapegoated son throughout this ordeal. I would have never been in this situation if the various systems and institutions responsible for protecting my rights and ensuring justice had not failed me at every turn. Specifically, my predicament is the result of a cascade of systemic failures and targeted actions, including:
 - **Banned by AFCA:** If I had not been unfairly banned by the Australian Financial Complaints Authority (AFCA), I would have had a viable means to challenge the financial misconduct and abuses I faced.
 - **Reprisals for Being a Rejected Whistleblower:** As a whistleblower, I exposed corruption and systemic abuse. Instead of receiving the protections I am entitled to under the Public Interest Disclosure Act 2013, I have suffered severe reprisals and systemic retaliation.
 - **Unpaid WorkCover and Insurances:** If I had been properly compensated through WorkCover, as affirmed by the Federal Court, and if my

insurances had been honored, I would not be facing the financial ruin that has led to my current housing crisis.

- **Lack of Access to Law as a Disabled Person:** My rights under the United Nations Human Rights Charter and the UN Convention on the Rights of Persons with Disabilities (CRPD) entitle me to equal access to the legal system. If I had been granted proper access to legal recourse, I would have had the means to defend myself and secure justice for the numerous abuses and crimes committed against me.
- **Unpaid Workers' Compensation:** If I had been paid the workers' compensation I am owed as a certified employee of the Department of Social Services (DSS), my financial situation would have been stable, preventing this eviction and related hardships.
- **Lack of Settlement from My Former Partner:** If I had received a fair settlement from my former partner, Stefan Iasonidis, as per the laws governing same-sex relationships at the time, I would have had the financial support to secure stable housing and avoid homelessness.
- **Persecution by a Privileged Minister:** A privileged NDIS Minister used his position of power to run me out of town, weaponizing the police and the legal fraternity against me, causing me to live in exile and further exacerbating my suffering.
- **Failure to Report Over 70 Crimes:** If I had a meaningful way of reporting over seventy crimes that have occurred against me to the police, whether at the state or federal level, I could have sought justice and protection from these unlawful acts.
- **IGIS Failure to Investigate Iasonidis:** If the Inspector-General of Intelligence and Security (IGIS) had investigated my former partner, Stefan Iasonidis, the ongoing exploitation and harm caused by him would have been addressed, preventing much of the suffering I have endured.
- **Ombudsman Ignoring My Complaints:** If the Ombudsman had acknowledged my complaints and taken meaningful action, the systemic neglect and injustices I have suffered would have been addressed.
- **NACC and Prime Minister's Inaction:** If the National Anti-Corruption Commission (NACC) had acknowledged my complaint or if the Prime Minister had acted meaningfully to address the corruption and persecution I face, I would not be in this desperate situation today.

- **Governor General's Lack of Response:** If the Governor General had responded in a meaningful way to my plight, it could have resulted in intervention and prevention of the severe abuse, neglect, and retaliation I have suffered at the hands of multiple institutions.

These failures have compounded over the years, leading to my current state of homelessness and victimization. Each of these institutions, through their inaction or direct involvement, has played a role in the deterioration of my well-being and the systemic denial of my rights. This eviction, therefore, is not an isolated incident but the culmination of years of neglect, abuse, and institutional failure.

Conclusion: NCAT must recognize that this eviction is the direct result of systemic failures that have left me without the protections, compensations, and legal recourses I am entitled to. Evicting me now, under these circumstances, would only serve to further victimize me, pushing me into further harm, destitution, and hopelessness. I respectfully request that NCAT take into account the broad, systemic nature of my case and prevent this eviction, ensuring that justice is finally served.

These systemic failures have directly led to my homelessness and financial hardships, and each entity involved bears responsibility for my current victimization. Achieving justice is crucial, not only to restore my rights but also to repay those who have supported me, particularly my dying father.

It is within the legal remit of the New South Wales Civil and Administrative Tribunal (NCAT) to rule that compensation be awarded to me by the appropriate party, agency, or statutory office due to the direct involvement of multiple entities in my victimization. NCAT has jurisdiction to adjudicate cases involving breaches of tenancy laws, disability discrimination, and related human rights issues, especially when the rights of individuals with disabilities have been violated under both domestic law and international conventions to which Australia is a signatory. Given NCAT's role in upholding legal standards and resolving disputes, it is obligated to consider all aspects of my claims, including those related to systemic neglect, discrimination, and the failure to provide necessary supports as mandated under the NDIS Act 2013 and other relevant legislation.

Legal Obligations of NCAT to Acknowledge Persecution

By law, NCAT is required to acknowledge my persecution rather than exacerbate my victimization. As a person with a disability who has already been subject to malicious neglect, NCAT has a duty to prevent further harm and avoid actions that would result in my eviction, homelessness, or potential suicide. This obligation is supported by:

- Disability Discrimination Act 1992 (Cth): NCAT must ensure that I am not discriminated against on the basis of my disability, particularly where reasonable adjustments could have prevented the current situation.
- NDIS Code of Conduct: Under the NDIS Code of Conduct, public officials, including those involved in decision-making processes like NCAT members, are mandated to report and act upon instances of abuse and neglect. By proceeding with an eviction, NCAT would be complicit in ongoing abuse and neglect, violating this code.

Public Office and Ethical Standards

NCAT judges, as holders of public office, are bound by ethical and legal standards that require them to treat all parties fairly and impartially. They are prohibited from acting deceitfully, or in collaboration with any proven conspiracy, as doing so would not only violate their ethical obligations but could also expose them to criminal liability. Should NCAT fail to act in accordance with these standards and instead further my victimization, the tribunal would be accountable for any harm caused, including homelessness or suicide, by failing to uphold my rights. This could lead to personal and professional repercussions for NCAT members, as they would be complicit in breaching the following legal frameworks:

- Australian Public Service Code of Conduct: This requires public officials to act with honesty, integrity, and transparency in their roles. Engaging in or enabling corrupt practices would be a direct breach of this code.
- Australian Human Rights Commission Act 1986: NCAT judges must ensure that my human rights are protected, including my right to protection from harm, discrimination, and neglect.

International Conventions and Obligations

NCAT operates under international legal frameworks, including UN conventions ratified by Australia, which provide protections for people with disabilities and ensure social and political rights. These conventions include:

- UN Convention on the Rights of Persons with Disabilities (CRPD): Ratified by Australia, this convention obliges NCAT to protect my rights to live independently and participate fully in the community. Any action

that leads to my eviction and further marginalization would violate this convention, particularly Article 19 (Living Independently) and Article 28 (Adequate Standard of Living).

- International Covenant on Civil and Political Rights (ICCPR): This convention protects individuals from persecution and ensures the right to protection from arbitrary actions, including homelessness.
- Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment: Australia is a signatory, and evicting a person with disabilities who has already suffered systemic abuse could be construed as cruel and inhumane treatment under this convention.

NCAT's Role in Preventing Complicity

By allowing an eviction that is based on political persecution and systemic neglect, NCAT would not only be complicit in ongoing abuse but would become the new source of that abuse. Under the NDIS Code of Conduct and public office obligations, NCAT members have a duty to report abuse and prevent further harm. Any ruling that contributes to my homelessness or suicide would make NCAT responsible for my continued neglect, and this would create legal liability for the tribunal and its members.

Failure to act ethically, fairly, and in compliance with these legal mandates would also expose NCAT to accusations of being part of a conspiracy, making it liable for criminal consequences. If NCAT knowingly contributes to this cycle of neglect and abuse, it would be seen as perpetuating harm against a vulnerable person in violation of both domestic laws and international human rights standards.

Conclusion

NCAT must act in accordance with its legal and ethical obligations to uphold the principles of fairness, justice, and human rights. Ruling in favor of my eviction without addressing the systemic neglect and persecution I have suffered would place NCAT in violation of the CRPD, ICCPR, NDIS Code of Conduct, and other international and domestic legal frameworks. In doing so, NCAT would become an active participant in the conspiracy and would bear responsibility for the resulting abuse, neglect, and potential harm to my well-being.

If you evict me I could die, and Aligned will not get the money I agree to pay them once compensation comes anyway.

Sincerely,

Barran Dodger